

Court No. - 24

Case :- WRIT - C No. - 49629 of 2013

Petitioner :- Kanpur Electricity Supply Co. Ltd. And 2 Others

Respondent :- The Permanent Lok Adalat And Another

Counsel for Petitioner :- Dr. S.K. Yadav

Hon'ble Pradeep Kumar Singh Baghel,J.

1. Petitioner is aggrieved by the order of Lok Adalat dated 12.06.2013, whereby Lok Adalat has set aside the inspection report dated 11.10.2012 and directed to prepare a bill in terms of clause 6.9 (B)(i) of the U.P. Electricity Supply Code, 2005.
2. Learned counsel for the petitioners submits that Lok Adalat does not have a jurisdiction to adjudicate the matter on a complaint. He has drawn the attention of this Court to the order of Lok Adalat, wherein, the petitioner has not even been offered settlement.
3. Learned counsel for the petitioner has placed reliance of an order of the Supreme Court in the case of LIC of India Vs. Suresh Kumar, (2011) 7 SCC 491.
4. Having considered the facts and circumstances of the case, the effect and operation of the order of Lok Adalat as it relates to the direction to prepare the bill in terms of Clause 6.9(B)(i), is stayed, till the next date of listing.
5. Learned Standing Counsel has accepted notice on behalf of respondent no. 1.
6. Issue notice to the respondent no. 2. He may file counter affidavit within three weeks from the date of receipt of the notice.
7. Learned counsel for the petitioner shall take steps within a week, and in case the steps are not taken within a week the interim order shall automatically stand vacated.
8. List the case in the **week commencing 07.10.2013**.

Order Date :- 13.9.2013

DS

Court No. - 2

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Respondent :- The Permanent Lok Adalat And Another

Counsel for Petitioner :- Dr. S.K. Yadav

Hon'ble Tarun Agarwala,J.

Passed over on the illness slip of Sri S.K. Yadav,
the learned counsel for the respondents.

Order Date :- 7.10.2013

Sanjeev

(Tarun Agarwala,J.)

Court No. - 2

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Respondent :- The Permanent Lok Adalat And Another

Counsel for Petitioner :- Dr. S.K. Yadav

Hon'ble Tarun Agarwala,J.

List has been revised. No one appears on behalf of the petitioners to press the present writ petition.

Dismissed for want of prosecution.

Order Date :- 21.10.2013

Sanjeev

(Tarun Agarwala,J.)